

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KABIR SINGH SIKAND,

Petitioner

VS.

PREETI HOODA SIKAND,

Respondent

) Case Number: FDI-23-798647

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) Petitioner Kabir Sikand (Father) and Respondent Preeti Sikand (Mother) married on 11/28/2007.

The parties disagree regarding their date of separation. Father contends the parties separated on 11/24/2020, for a marriage of 13 years. Mother contends the parties separated on 9/21/2023, for a marriage of 15 years and 10 months. The parties have one minor child, Kai (DOB: 11/4/2014, age 11). Father is represented by attorney Ana Cazeneuve of DeLacey, Riebel & Shindell LLP.

Mother is represented by attorney Jonathan Larose.

2) In 2024, both parties filed Requests for Domestic Violence Restraining Order against the other party. However, per the Stipulation and Order filed 6/14/2024, the parties agreed to dismiss their Requests for DVRO without prejudice.

3) At the prior 3/4/2025 hearing (per the Findings and Order After Hearing filed 4/4/2025), the Court ordered both parties to spend 20 hours per week seeking work, to apply to 10 jobs per week, and to maintain and serve monthly logs documenting seek work efforts.

- 1 4) On 1/23/2026, Mother filed a Request for Order seeking guideline child and temporary spousal
2 support retroactive to the date she filed her Request for Order, as well as an order requiring that
3 all child support add-ons be shared in accordance with Family Code section 4061. Mother further
4 asked the Court to delay any imputation of income to her until August 2026 because she is
5 currently taking classes at City College in San Francisco to update her photography skills. Mother
6 stated she is 48 years old and was a homemaker during the parties' marriage. Mother states she
7 has a BFA in New Media and an MFA in photography and she currently works as a blog editor,
8 technical consultant, and website designer for a school in India (for which she is paid \$1,000 per
9 month for 25 hours of work per week). Mother states she has been looking for work, including as
10 a barista, but has been unsuccessful. Mother states she has borrowed \$230,000 from family to pay
11 expenses, including paying \$170,000 in attorney's fees. Mother states she currently receives food
12 stamps. Mother states Father is a successful technology professional earning \$240,000 annually
13 who is in sole possession of the parties' three-story, seven room Queen Anne house in Hayes
14 Valley with a separate in-law apartment that the parties used to rent out to tenants.
- 15 5) On 1/20/2026, Mother filed an Income and Expense Declaration. Mother states her income is
16 \$1,000 per month. Mother states her monthly expenses total \$7,880. Mother states she has \$7,221
17 in cash savings and her other assets are "TBD". Mother states she owes \$21,629 for a car, \$3,598
18 for credit card debt, and \$165,000 for a loan from family and friends. Mother also states their son
19 spends 25% of his time with Mother.
- 20 6) On 2/4/2026 and 2/5/2026, a long-cause hearing was held. Per the Order After Hearing filed
21 2/6/2026, Judge Mori made final custody orders, awarding Father sole physical custody of Kai
22 and awarding joint legal custody of Kai with Father having final tiebreaker decision-making. The
23 order also adopted their parenting coordinator's recommendation for Kai to be in Mother's care
24 every other weekend on Friday at school pick up and drop off on Sunday at 7:30 PM or through
25 Monday at 7:30 PM if there is no school on that Monday, and one day per week on Mondays, and
26 the parties to alternate holidays and school breaks (including week on / week off during summer).
- 27 7) On 4/10/2026, Father filed a Responsive Declaration. Father states he consents to guideline child
28 support but does not consent to pay spousal support. Father states he was previously ordered to
29 pay child and spousal support to Mother (see Findings and Order After Hearing filed 5/23/2024).

1 However, at the hearing on 3/4/2025 (Findings and Order After Hearing filed 4/4/2025), the
2 parties agreed to set support at \$0 due to Father's job loss and the Court ordered both parties to
3 abide by the attached Seek Work Orders. Father states Mother has never provided her compliance
4 with the Seek Work Orders. Father states Mother holds a Bachelor's Degree in Communications
5 in addition to her other stated degrees. Father states the school for which Mother currently works
6 as a blog editor, technical consultant, and website designer is owned by Mother's family, and that
7 Mother previously informed Father that this position was a three-month temporary position.
8 Father states Mother has chosen to work part-time at below-market wages and takes voluntary
9 photography coursework one afternoon per week. Father notes Mother has not provided any proof
10 of enrollment, duration, or how the coursework will add to her existing credentials. Father
11 contends that had Mother complied with the Seek Work Orders issued 13 months ago, she likely
12 would have already secured full-time work at well above minimum wage. Father contends
13 Mother could be earning \$90,000 per year, or \$7,500 per month, and asks the Court to impute this
14 amount to Mother. Father states he began working for HubSpot in December 2025 after one year
15 of unemployment (during which Father states he incurred significant debt). Father states he has
16 made good faith settlement efforts regarding a support amount for Mother.

17 8) On 4/10/2026, Father filed a Memorandum of Points and Authorities.

18 9) On 4/10/2026, Father filed an Income and Expense Declaration. Father agrees that Kai is in
19 Mother's care 25% of the time.

20 10) On 4/16/2026, Mother filed a Reply Declaration. Mother states she is taking Advanced Photoshop
21 and Business Practices in Photography classes that require more than 30+ hours of weekly course
22 work and is walking dogs up to 10 hours weekly earning \$500 per month. Mother states she never
23 studied Communications and does not have a degree in it. Mother notes that Father only offers
24 her weekday visitation times, which impacts her ability to work on weekdays.

25 11) On 4/16/2026, Mother filed an additional Income and Expense Declaration. Mother states her
26 position at the school in India "ended."

27 12) On 4/16/2026, Mother filed a Statement of Support Calculations.

28 13) At the prior 4/23/2026 hearing (per the Amended Findings and Order After Hearing filed
29 6/26/2026), the Court made the following orders.

- 1 a. The Court finds good cause to impute Mother with 25 hours per week of minimum wage
2 income. This amounts to $((\$19.81 \times 25) \times 52) / 12 = \$2,146$ per month. This order is
3 made without prejudice to the Court's ability to impute additional income to Mother at
4 the upcoming trial.
- 5 b. Mother shall continue to comply with the existing Seek Work Order. The Court's
6 jurisdiction to modify child and spousal support retroactive to the date she secures a
7 position of paid employment where she is earning more than \$2,146 per month is
8 reserved.
- 9 c. Effective 1/23/2026, in accordance with the XSpouse calculation, Father shall pay to
10 Mother \$472 per month in guideline base child support and \$3,427 per month in
11 temporary guideline base spousal support, for total support due and owing of \$3,898 per
12 month.
- 13 d. Effective 1/23/2026, in addition to base child and temporary spousal support, Father shall
14 pay as additional Smith / Ostler child and temporary spousal support a portion of any and
15 all additional gross income (e.g., bonuses and vested RSUs) received in excess of his
16 base salary of \$20,000 per month, pursuant to the Bonus Table attached hereto and
17 incorporated herein. Smith / Ostler child and spousal support shall be paid to Mother
18 within 10 days of Father receiving the additional income and he shall provide to Mother
19 at the same time as payment documentary evidence showing the amount of additional
20 income received by Father.
- 21 e. Effective 1/23/2026, the parties shall share 65 (Father) / 35 (Mother) the following child
22 support add-on expenses:
- 23 i. All childcare costs incurred for employment as defined in Family Code section
24 4062(a)(1);
- 25 ii. All reasonable uninsured healthcare costs for Kai;
- 26 iii. All travel expenses incurred by Mother to take Kai to Tahoe for snowboarding
27 team during snowboarding team season. The reimbursable expenses are: mileage
28 for Mother from her home in Danville to Tahoe and back to Tahoe and the cost
29 of lodging in the Tahoe area. Reimbursement costs do not include meals.

- 1 f. A review hearing was set for 8/27/2026 to review child and spousal support, review
2 Mother's compliance with the Seek Work Order, and consider imputing full-time income
3 to Mother.

4 14) On 8/17/2026, Father filed an Update Declaration, a Statement of Support Calculations, and an
5 Income and Expense Declaration. Father states that, to date, he has never received Mother's seek
6 work logs. Father asks the Court to:

- 7 a. Clarify that, for purposes of the Smith/Ostler order, RSU income is received on the first
8 trading day on which the vested shares are both (a) deposited and settled in my brokerage
9 account and (b) saleable by Father under HubSpot's insider trading policy, and that the
10 additional gross income is calculated using the closing price of HubSpot stock on that
11 date multiplied by the gross number of shares vesting. Father requests that the 10-day
12 payment period run from that date, and that this mechanism apply to all future vesting
13 events.
- 14 b. Order Mother to pay Father existing child support add-ons in the amount of \$695.91, to
15 be deducted from my next support payment due on 9/1/2026
- 16 c. Impute Mother with monthly income of \$7,500 per month for purposes of determining
17 temporary spousal and child support. Father states that this is a below market salary for
18 photographers in San Francisco.
- 19 d. Modify combined child and temporary spousal support to \$2,160

20 15) On 8/17/2026, Father filed a Statement of Support Calculations.

21 16) On 8/17/2026, Father filed an Income and Expense Declaration. Father states that he is 49 years
22 old and works as a Director of Business Development for Hubspot, Inc. Father states that he earns
23 \$20,800 per month. Father states that he has \$1,835 in cash savings and \$2.3 million in real and
24 personal property. Father estimates that his monthly expenses total \$22,212. Father states that he
25 owes \$24,441 for a Tesla auto loan, owes \$43,914 in credit card debt, and \$480,000 to his parents
26 for a loan.

27 17) On 8/19/2026, a 3-afternoon long-cause hearing on the issue of date of separation concluded. The
28 matter is currently under submission.

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1 18) On 8/25/2026, Mother filed a Reply Declaration. Mother states that she was a stay-at-home wife
2 and mother when the parties married and she did not have an extensive job history and
3 marketable skills when she married Father and through the entirety of the parties' marriage.
4 Mother states that during their marriage she had a handful of short term freelance jobs. Mother
5 states that she was recently enrolled in two classes at City College which required 25-30 hours of
6 weekly work and she is currently enrolling in two other courses at City College which start next
7 week, an Environmental Portraiture (which Mother states would help her land more editorial
8 types of work) and a Lighting class. Mother attached as Exhibit A copies of her search work logs.
9 Mother states she thought her search work logs only needed to be made available to the Court.
10 Mother states, "neither the Petitioner nor his counsel have the personal knowledge and or
11 expertise to state with any type of certainty, what someone with my skills, employment history,
12 and education, could make in the work force. They are not experts in this area, and imputing me
13 income of \$90,000.00 is based on no admissible data points, and the Petitioner's request to do so
14 should be denied." Mother requests the Court:

- 15 a. Reserve any reimbursement of "child support add on" for the trial on their financial
16 issues "as we both have existing reimbursement requests, that continually change"
- 17 b. Father to pay Mother \$550 per month for travel expenses for visitation (including gas and
18 toll charges)
- 19 c. Modify child and temporary spousal support to include 20 hours of minimum wage
20 income (\$16.90 per hour) plus an additional \$800 per month for the dog walking work
21 Mother is currently doing

22 19) On 8/25/2026, Mother filed an Income and Expense Declaration. Mother states that she is 48
23 years old, has a BFA in New Media, and an MFA in Photography. Mother was last employed in
24 Website Design and as a Blog Editing Consultant for Vega Schools in India between 7/1/2025
25 and 7/31/2025. For that job, she worked 25 hours per week and earned \$1,000 per month. Mother
26 states that she earns \$700 – 900 per month walking dogs. Mother states she has \$30,000 in cash
27 savings and \$1.1 million in community property real estate equity. Mother states that her monthly
28 expenses total \$9,162. Mother states she owes \$18,000 for a car loan, owes \$16,426 in credit card
29 debt, and owes \$288,000 for a loan from family and friends.

20) On 8/25/2026, Father filed a Motion to Strike Mother's declaration. Father states, "The Findings and Order After Hearing filed on June 26, 2026, following the April 23, 2026 hearing ordered that '[a]t least 10 calendar days prior to the next hearing date, both parties shall file and serve updated Income and Expense Declarations, Statements of Support Calculations, and update declarations.'...Petitioner timely filed and served his updated documents on August 17, 2026. Respondent served hers eight (8) days after the court ordered deadline, under a 'reply' label that no order or rule authorizes for this hearing. As a result of the late service, Petitioner has not had time to review and analyze Respondent's income and expense information and support calculations, or to prepare any written response to the factual assertions in her declaration, before the hearing."

21) The Court notes the following future hearing dates:

- a. 10/19/2026 – Trial setting before Judge Chan
- b. 11/2/2026 – Judicial Settlement Conference before Judge Luna

B. Findings and Order

- 1) Father's request to strike Mother's pleadings filed 8/25/2026 is denied.
- 2) Father's request that the Court impute Mother with \$7,500 per month in income is denied. The Court does not find that Father has met his burden to prove that Mother has the ability or opportunity to earn that level of income. This finding and order is without prejudice to Father's ability to provide further evidence regarding this claim when long-term spousal support is adjudicated.
- 3) Given the evidence currently before the Court, the Court is only able to find that Mother has the ability and opportunity to earn fulltime minimum wage income. However, Father's income has also increased by \$800 per month. If the support calculation were adjusted to account for these changes in the parties' incomes, support would only be minimally impacted. On this basis, the Court declines to modify child and temporary spousal support at this time.
- 4) Father's request that the Smith / Ostler order be clarified as follows is granted. For purposes of the Smith/Ostler order, RSU income is received on the first trading day on which the vested shares are both (a) deposited and settled in my brokerage account and (b) saleable by Father under HubSpot's insider trading policy, and that the additional gross income is calculated using

1 the closing price of HubSpot stock on that date multiplied by the gross number of shares vesting.
2 The 10-day payment period shall run from that date, and this mechanism shall apply to all future
3 vesting events.

4 5) The following requests are denied without prejudice to a properly noticed request as they are
5 beyond the scope of the 8/27/2026 hearing. The parties shall meet and confer on these issues. If
6 the parties are unable to reach an agreement, either party may file and serve a new Request for
7 Order.

8 a. Father's request that Mother pay him child support add-ons in the amount of \$695.91.

9 b. Mother's request that Father pay her \$550 per month for travel expenses for visitation
10 (including gas and toll charges).

11 6) The Court will prepare the Findings and Order After Hearing.
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